

SENATE No. 2980

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, March 9, 2026.

The committee on Housing to whom was referred the petition (accompanied by bill, Senate, No. 965) of Julian Cyr for legislation to promote fair housing by preventing discrimination against affordable housing, report the accompanying bill (Senate, No. 2980).

For the committee,
Julian Cyr

SENATE No. 2980

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An Act promoting fair and affordable housing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 31 of Chapter 23B, as appearing in the 2024 Official Edition, is
2 hereby amended by inserting the following clause:-

3 (v) Enforcing discriminatory land use practices under section 31A.

4 SECTION 2. Chapter 23B is hereby amended by inserting the following new section:-

5 Section 31A. Discriminatory land use enforcement

6 (a) It shall be an unlawful practice for any public board or body to engage in
7 discriminatory land use practices. For the purposes of this section, a “discriminatory land use
8 practice” shall mean any action or inaction, including but not limited to the enforcement of land
9 use ordinances or bylaws and permitting and funding decisions, with the purpose or effect of
10 limiting or excluding: (1) housing accommodations for families or individuals with incomes at or
11 below 80 per cent of the area median income as defined by the United States Department of
12 Housing and Urban Development; (2) housing accommodations sufficient for families with

children including those with more than two bedrooms; or (3) families or individuals based on race, color, religious creed, national origin, sex, gender identity, sexual orientation, age, genetic information, ancestry, marital status, veteran status or membership in the armed forces, familial status, disability condition, blindness, hearing impairment or because a person possesses a trained dog guide as a consequence of blindness, hearing impairment or other handicap.

(b) The office of fair housing shall receive, investigate and pass upon complaints of unlawful practices alleging discriminatory land use practices. The office may, in fulfilling requirements under this section, establish and maintain offices within the commonwealth; meet and function at any place within the commonwealth; appoint attorneys, investigators, clerks, and other employees or agents and prescribe their duties; fix their compensation within the limitations provided by law; adopt, promulgate, amend, and rescind rules, regulations, and procedural guidelines necessary to carry out the provisions of this section; and hold hearings, subpoena witnesses, compel their attendance, administer oaths, take the testimony of any person under oath, and in connection therewith, to require the production for examination of any books or papers relating to any matter under investigation or in question before the commission.

(c) Any person claiming to be aggrieved by an alleged discriminatory land use practice may submit a verified complaint in writing to the office. The attorney general may, in like manner, file such complaint. After the filing of any complaint, the office shall investigate and determine whether probable cause exists for crediting the allegations of the complaint. If the office determines, after such investigation or preliminary hearing that probable cause exists for crediting the allegations of a complaint relative to a discriminatory land use practice, the office shall immediately serve notice upon the complainant and respondent of their right to elect judicial determination of the complaint. If any complainant or respondent elects judicial

determination under this subsection, the office shall authorize, and not later than 30 days after the election is made, the attorney general shall commence and maintain, a civil action on behalf of the complainant in the superior court for the county in which the unlawful practice occurred. Any complainant may intervene as of right in said civil action. If the court in such civil action finds that a discriminatory land use practice has occurred, the court may grant any relief which a court could grant with respect to such discriminatory land use practice in a civil action.

(d) It shall not be a violation of this chapter if a person whose action or inaction has an unintended discriminatory effect; provided, that the action or inaction was motivated and justified by a substantial, legitimate, nondiscriminatory, bona fide governmental interest and that said interests cannot be served by any other policy or practice that has a less discriminatory effect.

SECTION 3. The executive office of housing and livable communities shall promulgate regulations pursuant to section 31A of chapter 23B, as inserted by section 2 of this act, within two years of the passage of this act.

SECTION 4. Sections 1 and 2 shall take effect two years after the passage of this act.